

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION GRANTING AN EXCEPTION TO THE '201 AGREEMENT' FOR THE OWNER OF THE PROPERTY LOCATED SOUTH OF HIGH PLAINS ROAD AND WEST OF SOUTH GREELEY HIGHWAY, BETWEEN ROBERT AVENUE AND DAYSHIA LANE."

WHEREAS, on April 25, 1983, the City of Cheyenne ("City"), the County of Laramie ("County"), the City of Cheyenne Board of Public Utilities ("BOPU"), and the South Cheyenne Water and Sewer District ("District") entered into an agreement entitled "Memorandum of Agreement: Intergovernmental Contract Agreeing to Participate in the Implementation of the Findings of the 201 Facilities Plan Final Report for the City of Cheyenne, the South Cheyenne Water and Sewer District and Laramie County";

WHEREAS, the April 25, 1983, agreement is commonly referred to as the "201 Agreement";

WHEREAS, the 201 Agreement defines the respective responsibilities and obligations of the signatory governmental entities with respect to the implementation of the "201 Facilities Plan" that was created in response to the requirements of Section 201 of the Federal Water Pollution Control Act;

WHEREAS, one of the principal purposes of the 201 Agreement is to ensure that wastewater (sewage) generated in the areas immediately surrounding the corporate limits of the City of Cheyenne would preferentially be disposed of through the sanitary sewer systems operated by BOPU;

WHEREAS, the 201 Agreement defines the "service area boundary" sometimes referred to as the "sewerable boundary" or "201 Area" as the area that "can be provided with Municipal Sewage Treatment Services via gravity flow";

WHEREAS, Applicant is requesting a 201 Exception as owner of a residential property that lies within the City of Cheyenne jurisdiction as well as within the 201 Area, specifically Parcel Identification No. 1366290001400, which is 10.57-acres in size, is legally described as a portion of Section 29, Township 13 North, Range 66 West of the 6th Principal Meridian, Laramie County, Wyoming, and is more particularly described as follows:

A PARCEL OF LAND SITUATE IN THE NORTH 1/2 OF SEC 29, DESC AS: BEG AT A POINT, MONUMENTED WITH A 2" BRASS CAP, ON THE WEST R/W LINE OF US HWY 85, SAID POINT BEING COINCIDENT WITH THE NORTHEAST CORNER OF TRACT 90, BISON CROSSING, 4TH FILING, AND WHICH POINT BEARS S.50 DEG 30'57"E. FROM THE NORTHWEST CORNER OF SAID SEC 29, 3,614.10'; TH N.89 DEG 23'00"W., ALONG THE NORTH LINE OF SAID BISON CROSSING SUBDIVISION, 4TH FILING, 503.26' TO THE EAST LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.00 DEG 37'36"W., ALONG SAID EAST LINE, 926.69' TO

THE NORTH LINE OF THAT PARCEL DESCRIBED IN BOOK 2622, PAGE 1228; TH N.82 DEG 21'13"W., ALONG SAID NORTH LINE, 40.01' TO THE SOUTHEAST CORNER OF TRACT 4, CATHCART SUBDIVISION; TH N.00 DEG 34'08"W., ALONG THE EAST LINE OF SAID TRACT 4, 279.95' TO THE SOUTH R/W LINE OF ROBERT AVENUE; TH S.89 DEG 24'51"E., ALONG SAID SOUTH LINE, 80.02' TO A THE NORTHWEST COMER OF TRACT 3, CATHCART SUBDIVISION; TH S.00 DEG 34'08"E., ALONG THE WEST LINE OF SAID TRACT 3, 289.88' TO THE SOUTHWEST CORNER OF SAID TRACT 3; TH S.89 DEG 24'46"E., ALONG THE SOUTH LINE OF SAID TRACT 3, 427.47' TO THE WEST R/W LINE OF US HWY 85; TH S.02 DEG 50'46"E., ALONG SAID WEST LINE, 923.43' TO THE POB.

WHEREAS, the Applicant seeks to install a small wastewater system [septic system] at a cost of approximately \$14,500.00 rather than pay an estimated cost of \$316,650.00 to extend sanitary sewer service approximately 330 linear feet to the Applicant's property;

WHEREAS, pursuant to Section 3.4(d) of the 201 Agreement, the County agreed to work with the City-County Health Unit to "ensure that no new permits for small wastewater treatment systems within the service area boundary that are inconsistent with the Facility Plan are issued";

WHEREAS, exceptions for the installation of small wastewater treatment systems may be granted pursuant to Section 4.1 of the 201 Agreement, and the Applicant has applied for such an exception;

WHEREAS, Section 4.1 provides in relevant part that an exception may be granted if it "will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship." Section 4.1 further provides that a "hardship will be determined based upon a cost/effectiveness study of sewer service provision to the property seeking the exception[;]" and

WHEREAS, upon finding that a demonstrable hardship exists under Section 4.1 of the 201 Agreement, on March 3, 2025, the City Planning Commission recommended that the Governing Body grant the Applicant's 201 Exception to permit the installation of a small wastewater system on the subject property.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1 of the 201 Agreement to permit the installation of a small wastewater system, as the exception will alleviate a clearly demonstrable hardship and compliance with the Facility Plan will exacerbate this hardship; and

BE IT FURTHER RESOLVED, that the City of Cheyenne hereby consents to the granting of an exception pursuant to Section 4.1 of the 201 Agreement on the conditions that the property be required to connect to sanitary sewer should it become readily available and the Applicant connect to the Board of Public Utilities water system.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2025.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kylie Soden, City Clerk